

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
PATRICK MELTON,

Plaintiff,

- against -

Plaintiff designates
New York County
the place of trial

The basis of venue is
Location of incident

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER ARMANDA DELAROSA,

Defendant.

SUMMONS

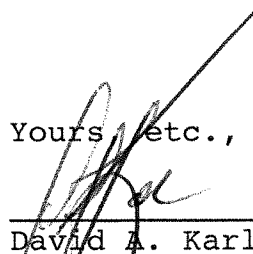
Plaintiff resides at:
711 FDR Drive, Apt. 8D
-----X
New York, NY 10009

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 10, 2024

Yours, etc.,



David A. Karlin, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

Defendant(s) Address(es):

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007
NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA
Police Service Area 7
737 Melrose Ave,
Bronx, NY 10451

BELOVIN FRANZBLAU & ASSOCIATES, PC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
PATRICK MELTON,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No:

THE CITY OF NEW YORK and NEW YORK CITY
POLICE OFFICER ARMANDA DELAROSA,

Defendant.
-----X

Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU & ASSOCIATES, PC**, as and for a Verified Complaint, respectfully alleges as follows:

1. At all the times herein, plaintiff was and still is, a resident of the City and State of New York, County of Bronx.

2. At all the times herein, the defendant, **THE CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in City of New York, County of Bronx, State of New York.

3. Upon information and belief, at all times herein, the defendant, **THE CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, who was herein duly employed and acting as a Police Officer (or other ranking officer) with the police department of **THE CITY OF NEW YORK**.

4. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer).

5. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of employment with **THE CITY OF NEW YORK**.

6. Upon information and belief, all times herein, the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, was and still is an employee of **THE CITY OF NEW YORK** as a Police Officer (or other ranking officer) and was at all times herein, acting within the furtherance and scope of employment with **THE NEW YORK CITY POLICE DEPARTMENT**.

7. **THE CITY OF NEW YORK** condoned all of the actions of **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, as set forth herein and hereinafter.

8. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, pursuant to the doctrine of respondeat superior.

9. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and all other uniformed officers with whom **P.O. DELAROSA** acted, pursuant to the doctrine of respondeat superior.

10. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA** and others within **THE NEW YORK CITY POLICE DEPARTMENT**, pursuant to the doctrine of respondeat superior.

11. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, as herein and hereinafter set forth.

12. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and all other uniformed officers with whom **P.O. DELAROSA** acted, as herein and hereinafter set forth.

13. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA** and all of the acts of **THE NEW YORK CITY POLICE DEPARTMENT**, as herein and hereinafter set forth.

14. Upon information and belief, each and all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, alleged herein was done, both as an individual and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the authority and/or color of his authority and his position as a Police Officer (or other ranking officer) for the defendant, **THE CITY OF NEW YORK**.

15. Upon information and belief, on or about February 16, 2024 at approximately 10:00 a.m., the plaintiff, **PATRICK MELTON**, was lawfully and properly inside of 711 FDR Drive, Apartment 8D, New York, New York when, upon information and belief, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and other uniformed officers with whom **P.O. DELAROSA** acted, falsely, improperly and without legal justification, entered and refused to leave plaintiff's premises, trespassed, handcuffed, arrested, detained, questioned, assaulted, battered, threatened, placed in fear of imminent physical injury, violated the constitutional rights of, injured, beat, dragged, handcuffed overly tight, imprisoned, transported, searched, and charged and participated in prosecuting the plaintiff.

16. Upon information and belief, the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and other uniformed officers with whom **P.O. DELAROSA** acted, performed

all such acts against plaintiff's will, with plaintiff's knowledge and without plaintiff's consent.

17. Upon information and belief, the defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and other uniformed officers with whom **P.O. DELAROSA** acted, performed all such acts without sufficient cause, facts, evidence or justification.

18. Upon information and belief, during the time the plaintiff was unlawfully held at the scene of this incident, the police vehicle and/or at the police precinct and/or at the Courthouse, the plaintiff was forced to undergo great emotional and mental anguish and emotional and physical harm, and loss of liberty and freedom

19. Upon information and belief, during the time the plaintiff was unlawfully held at the scene of this incident, the police vehicle and/or at the police precinct and/or at the Courthouse, the plaintiff was forced to undergo great emotional and mental anguish and emotional and physical harm, and loss of liberty and freedom, and was kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish thereafter.

20. Prior to the commencement of this action, on or about the 22nd day of April, 2024, a Notice of Claim was duly served herein on the defendant, **THE CITY OF NEW YORK**, resulting in plaintiff

undergoing a 50-H hearing on or about the 17th day of September, 2024 pursuant to the General Municipal Law. At no time prior to this action being brought, did the defendant or any of the defendants' representatives, settle or seek to settle this claim. This action is timely and properly brought.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AGAINST THE
CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA
DELAROSA**

21. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "20", above as if fully set forth herein.

22. On February 16, 2024 at approximately 10:00 a.m., the plaintiff was lawfully and properly at the premises known as 711 FDR Drive, Apartment 8D, New York, New York.

23. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested.

24. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. DELAROSA** acted.

25. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely arrested and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. DELAROSA** acted, and plaintiff was aware of all such actions and did not consent to any such actions.

26. Upon information and belief, by the reason of the aforesaid **FALSE ARREST** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
AGAINST THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER
ARMANDA DELAROSA

27. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "26", above as if fully set forth herein.

28. On February 16, 2024 at approximately 10:00 a.m., the plaintiff was lawfully and properly at the premise know as 711 FDR Drive, Apartment 8D, New York, New York.

29. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely imprisoned.

30. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely imprisoned and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with who **P.O. DELAROSA** acted.

31. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely imprisoned and such was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with who **P.O. DELAROSA** acted, and plaintiff was aware of all such actions and did not consent to any such actions.

32. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK** and

NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AGAINST THE CITY
OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA

33. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "32", above as if fully set forth herein.

34. On February 16, 2024 at approximately 10:00 a.m., the plaintiff was lawfully and properly at the premise know as 711 FDR Drive, Apartment 8D, New York, New York.

35. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely and improperly threatened use of force while plaintiff was not engaging in any activity which would justifiably warrant such a threat and plaintiff was aware of the immediate danger of the defendants' actions and did not consent to such threats or actions and said threats and actions by the defendant placed plaintiff in fear of imminent harm.

36. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely and improperly threatened with use of force while plaintiff was not engaging in any activity which would

justifiably warrant such a threat and plaintiff was aware of the immediate danger of the defendants' actions and did not consent to such threats or actions and said threats and actions by the defendant placed plaintiff in fear of imminent harm and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. DELAROSA** acted.

37. Upon information and belief, on February 16, 2024, plaintiff was aware of all such actions by **P.O. DELAROSA** and those officers with whom **P.O. DELAROSA** acted, and plaintiff did not consent to any such actions.

38. Upon information and belief, by the reason of the aforesaid **ASSAULT** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY AGAINST THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA

39. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "38", above as if fully set forth herein.

40. On February 16, 2024 at approximately 10:00 a.m., the plaintiff was lawfully and properly at the premise know as 711 FDR Drive, Apartment 8D, New York, New York.

41. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely and improperly battered the plaintiff while plaintiff was not engaging in any activity which would justifiably warrant such battery and plaintiff did not consent to such battery.

42. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, battered plaintiff while plaintiff was not engaging in any activity which would justifiably warrant such a threat and plaintiff did not consent to same and all was precipitated by the unlawful and improper actions of the named defendants herein and/or those other uniformed officers with whom **P.O. DELAROSA** acted.

43. Upon information and belief, on February 16, 2024, plaintiff was aware of all such actions by **P.O. DELAROSA** and those officers with whom **P.O. DELAROSA** acted, and plaintiff did not consent to any such actions.

44. Upon information and belief, on February 16, 2024, plaintiff was unlawfully, improperly and without probable or sufficient cause, falsely and improperly struck, punched, physically dragged while handcuffed and while in the presence of many uniformed police officers, while plaintiff was not engaging in any activity which would warrant such actions by the defendants and at all times, the plaintiff was aware of such actions and did not consent to such actions.

45. Upon information and belief, by the reason of the aforesaid **BATTERY** of the plaintiff by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time and/or loss of enjoyment of life, for which plaintiff is entitled to damages from defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
CIVIL RIGHTS PURSUANT TO 42 USC §1983 AGAINST NEW YORK CITY
POLICE OFFICER ARMANDA DELAROSA**

46. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "45", above as if fully set forth hereinafter.

47. Upon information and belief, during all the times herein, the individual defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the Cit and State of New York, County of Bronx.

48. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, engaged in improper and/or illegal conduct as set forth herein, to the injury of the plaintiff, and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States.

49. Upon information and belief, defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, engaged in improper and/or illegal conduct as set forth herein to the injury of the plaintiff, improperly entered and remained in plaintiff's apartment despite clear statements by plaintiff and plaintiff's aunt's that said officer and others were not permitted to do so, falsely arrested and unlawfully imprisoned, assaulted and/or battered the plaintiff inside said apartment without sufficient or just cause, and deprived plaintiff of the rights, privileges and immunities secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States and the plaintiff was thereafter the subject of a malicious prosecution by the defendant regarding criminal charges which have since been dismissed, all

without probable cause or legal justification and all precipitated by or directly caused by the unlawful and/or improper actions of P.O. DELAROSA and/or those uniformed officers with whom P.O. DELAROSA acted.

50. Plaintiff was aware of all actions set forth herein and did not consent to any such actions and such actions deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution, to wit, freedom from: illegal seizure, illegal search, violative search, illegal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983.

51. Upon information and belief, the defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

52. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department and **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and constituted a continuing pattern of abuse and misconduct by the New York City Police Department in general and specifically, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, and said misconduct and official

unconstitutional policy caused plaintiff to be subjected to the aforesaid conduct and deprived of his constitutional rights.

53. Upon information and belief, at all times herein, **THE CITY OF NEW YORK** condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring number of 42 USC § 1983 claims filed against **THE CITY OF NEW YORK** and/or the New York City Police Department and this official unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations as well as repeatedly shown by the actions of the New York City Police Department.

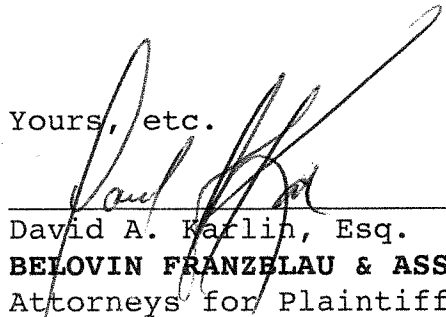
54. Upon information and belief, as a direct and proximate result of the conduct by the defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, loss of constitutional rights, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

55. Plaintiff hereby demands compensation and punitive damages against defendant, **NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA**, together with reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgment against the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA, jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action for FALSE ARREST, and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action for FALSE IMPRISONMENT, and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action for ASSAULT, and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action for BATTERY, and in amount exceeding the jurisdictional limits of all lower Courts plus attorney's fees and punitive damages on the Fifth Cause of Action against defendant, NEW YORK CITY POLICE OFFICER ARMANDA DELAROSA, for CIVIL RIGHTS VIOLATIONS, together with costs, interest and disbursements of this action, and together with attorneys' fees, and together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York

Yours, etc.



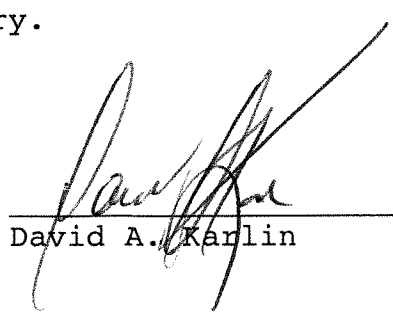
David A. Karlin, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

State of New York)
 : ss.:
County of Bronx)

The undersigned, an attorney admitted to practice in the Courts of New York State, shows that the deponent is the attorney of record for the Plaintiff(s) in the within action; deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believes it to be true. This Verification is made by deponent and not by Plaintiff(s) because Plaintiff(s) are without the county wherein deponent maintains his offices. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: independent investigation, records, papers and documents in the file, conversations, communications and correspondence with the Plaintiff(s).

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York
December 10, 2024



David A. Karlin